

Fact Sheet on U.S. Federal Judges

1. Appointed for life

- All Federal Judges-at each level-are appointed for life (these are also called “Article III Judges”).
- The exceptions are magistrate judges and bankruptcy judges.

2. Nominated by the President, confirmed by the Senate

- The President nominates all Federal Judges and the Senate confirms them.
- The House of Representatives can impeach a judge.

3. Racial & Gender Representation

- As of August 1, 2024 women made up one-third of Article III judges, up from just over 25% in 2020.
- Racial diversity has also increased—from 91% white in 1980 to 74% in 2024—but judges of color remain underrepresented compared to the U.S. population (e.g., 7.5% Hispanic vs. 19.5% of the population).
- Fifteen states (30%) have never had a Black justice on their supreme court bench (these are state judges, not federal).

4. Politics

- President Jimmy Carter transformed the judiciary’s make-up in 1978 through the **Omnibus Judgeship Act**. This law created **187 new federal judge positions**, which allowed Pres Carter to appoint 262 life-tenured judges (40% of the federal bench).
- Carter used the opportunity to **diversify the judiciary**, appointing more women, people of color, and lawyers from varied professional backgrounds than any president before him.
- President Biden emphasized diversity, confirming over 200 judges, with more than 60% being women and people of color. His appointees often bring experience from civil rights, labor, and public defense backgrounds.

Court Level	Democratic Appointees (%)	Republican Appointees (%)	Vacant (%)
District Courts	56%	37%	7%
Courts of Appeals	49%	50%	1%
Supreme Court	33%	67%	0%

5. Trailblazers in Judicial History

1870 – Jonathan Jasper Wright: First Black federal judge on a state supreme court (South Carolina). The next such appointment wasn't until 1955 (**Harold A. Stevens** in New York).

1922 – Florence E. Allen: First woman to serve on a state supreme court (Ohio).

1928 – Genevieve Rose Cline: First woman to serve as a federal judge, appointed to the U.S. Customs Court (later the U.S. Court of International Trade).

1934 – Florence E. Allen: Became the second woman to serve as a federal judge.

1937 – William Hastie: First Black federal judge, nominated by FDR.

1967 – Thurgood Marshall: First Black justice on the U.S. Supreme Court.

1981 – Sandra Day O'Connor: First woman justice on the U.S. Supreme Court.

1993 – Ruth Bader Ginsburg: First Jewish woman justice on the U.S. Supreme Court.

2009– Sonia Sotomayor: First Hispanic woman justice on the U.S. Supreme Court.

2011 – Cathy Bissoon: First South Asian woman to serve as a federal judge.

2013 – Nitza Quiñones Alejandro: First openly lesbian Latina to serve as a federal judge.

2022 – Ketanji Brown Jackson: First Black woman justice on the U.S. Supreme Court.

Fact Sheet on U.S. federal appeals courts (*U.S. Courts of Appeals/Circuit Court*):

1. Only judges-no jury, no new trial

- Appeals are decided by panels of **three judges** (sometimes the full court sits together in a process called *en banc*).
- They don't hold new trials or see new evidence
- They base decisions solely on the trial record and written/oral arguments from lawyers
- They review cases to decide if the trial was conducted fairly and the law was applied correctly

2. There are 13 Circuit Courts in the US

- **11 numbered circuits** cover specific regions of the U.S.
- The **D.C. Circuit** is often called “the second most powerful court in the country” because it hears many high-profile cases involving federal regulations, executive power, and national security.
- The **Federal Circuit** handles specialized cases nationwide, like patents and international trade.
- Appeals court panels travel within their circuit to hear cases, although many arguments today are done remotely or in main courthouses.

3. Statistics

- Federal Courts of Appeals handle over **50,000** cases annually
- About **10.9%** of district court cases are appealed.
- The U.S. Supreme Court takes only about **1% of cases** appealed to it.

4. Decisions set binding precedent

- Within their own circuit, their rulings bind all lower federal courts.
- Sometimes, different circuits disagree on the same legal question — these *circuit splits* often prompt Supreme Court review.

5. Their opinions can shape national policy

- Especially when they interpret federal statutes or constitutional rights — because their rulings apply to all states within their circuit.

How a case gets to the Supreme Court

1. Mandatory route (most cases)

- If a case starts in a federal district court, the losing party generally must appeal to the **U.S. Court of Appeals** for that circuit.
- The Supreme Court then receives the case only if it grants a petition for writ of certiorari (discretionary review).

2. Bypassing the court of appeals

- Direct appeals from certain special federal courts can go straight to the Supreme Court.
- **Rare federal statutes** — Congress sometimes gives direct appeal rights (e.g., certain Voting Rights Act provisions).
- **Original jurisdiction** — A small category where a case can begin in the Supreme Court itself, such as disputes between U.S. states.

3. State court cases

- Cases can reach the Supreme Court **from a state's highest court** if there's a federal constitutional or statutory question.
Example: *Brown v. Board of Education* came from the Kansas Supreme Court, not a federal appeals court.

Notable Powers

- **Judicial Review:** Established in *Marbury v. Madison* (1803) — the Court can strike down laws or executive actions it deems unconstitutional.
- **Original Jurisdiction:** In rare cases (e.g., disputes between states), the Supreme Court is the trial court.
- **Certiorari Process:** Most cases arrive via petitions for writ of certiorari; four justices must agree to hear the case ("Rule of Four").

The Court grants certiorari when a case presents issues of potential national significance, could resolve conflicting decisions among the federal circuit courts, or is likely to establish important precedent. And possibly for political motivations?

Trump v. CASA

Regarding Universal Injunctions and the Enforcement of Trump's Birthright Citizenship Order

Overview

In 2025, President Trump issued an Executive Order (EO) declaring that children born in the United States to undocumented parents would not be recognized as U.S. citizens at birth. Immigrant advocacy groups, led by CASA de Maryland, sued, arguing the order violated the Fourteenth Amendment's Citizenship Clause and long-standing precedent.

Federal district courts in Maryland, California, and elsewhere issued universal (nationwide) injunctions blocking the EO nationwide. These injunctions protected not just the named plaintiffs but anyone who might be affected. The Trump Administration appealed, arguing that such broad injunctions exceeded judicial authority.

On June 27, the Supreme Court issued a 6–3 decision. The Court did **not** decide whether the EO itself is constitutional. Instead, it held that lower courts had likely overstepped their equitable powers by issuing universal injunctions. The Court said relief should extend only to the parties before the court, unless a properly certified class action justifies broader scope.

This ruling will have a major impact on many areas. Federal policies—even unconstitutional Executive Orders—will stay in place for most people while cases move through the courts.

History of Universal Injunctions

A universal injunction is a type of court order that stops the government (or a private party) from enforcing a law or policy against anyone, not just the individual plaintiffs.

Historically, injunctions in U.S. courts were *party-specific*, protecting only those who sued, even if the challenged policy applied broadly. A plaintiff might win protection from an unconstitutional policy while the government continued enforcing it against everyone else. This began to shift in the mid-20th century, especially during the civil rights era, when systemic problems like school segregation and voting rights violations required remedies extending beyond named plaintiffs.

The practice expanded in the 21st century. Nationwide injunctions were used against Obama-era programs like DACA. Under Trump, more than fifty such orders blocked policies ranging from travel bans to asylum restrictions. Critics, including Justice Clarence Thomas, argued these universal injunctions were historically unprecedented, since they protected nonparties rather than just plaintiffs. By Biden's presidency they had become a routine litigation tool, used across the political spectrum. SCOTUS did not choose to review the issue until the current Trump presidency.

Nationwide Injunctions by Administration

Administration	Total Nationwide Injunctions	Issued by Opposing-Party Appointees	Percentage Opposing Party
George W. Bush (2001–08)	6	3 (Democratic-appointed)	50.00%
Barack Obama (2009–16)	12	7 (Republican-appointed)	58.30%
Trump 1st Term (2017–20)	64	59 (Democratic-appointed)	92.20%
Biden (First 3 Years)	14	14 (Republican-appointed)	100%
Trump 2nd Term (Jan–Apr 2025)	~35	(Not specified)	—

How this changes legal strategy

1. The limits on universal injunctions mean that advocacy groups can no longer rely on a quick nationwide freeze via a single case. **More parallel lawsuits become necessary** to shield more groups of plaintiffs in different jurisdictions, unless a class is certified or an appellate court issues broader relief.
2. Litigators will now push harder for **class certification** at the start of cases. This changes how lawsuits are structured and what plaintiffs they choose.

To certify a class, plaintiffs must prove **all** of these (Rule 23(a)):

1. **Numerosity** – The class is so large that joining all members individually is impractical.
2. **Commonality** – There are legal or factual issues common to all members.
3. **Typicality** – The claims or defenses of the named plaintiffs are typical of the class.
4. **Adequacy** – The named plaintiffs and their lawyers will fairly and adequately protect the interests of the class.

Then, plaintiffs must fit into one of the categories in Rule 23(b):

- **(b)(2):** The government or defendant has acted the same way toward the class, and plaintiffs seek injunctive or declaratory relief (most common in constitutional or policy challenges).
- **(b)(3):** Plaintiffs seek money damages, and common questions must “predominate” over individual issues (harder to prove).

3. Appellate Courts Gain Power. After CASA, district courts can only give relief to plaintiffs or certified classes, so appellate courts (including SCOTUS) become the main venues for broad impact. Their rulings—whether precedential, declaratory, or expanded injunctions—shape policy across jurisdictions. Even decisions formally limited to parties often carry nationwide weight. As a result, both sides will push cases up the ladder faster and focus resources on appeals.

4. More lawsuits and longer lawsuits will **cost more money**. Putting more burden on plaintiffs.

Aspect	Before Trump v. CASA	After Trump v. CASA
Primary Remedy	Seek a universal/nationwide injunction from a friendly district judge — a single order could halt a federal policy everywhere.	District courts are limited to protecting named plaintiffs. Broad relief requires a certified class or higher-court intervention.
Case Framing	Narrow plaintiff pool was enough (e.g., one NGO, one state). Relief would still extend nationwide.	Need to build large plaintiff groups and pursue class certification early to ensure relief reaches beyond individual plaintiffs.
Forum Shopping	Find one favorable district court (e.g., N.D. Cal., S.D. Tex.) and freeze policy nationwide.	Still valuable, but less decisive. Multiple smaller suits may be needed until appellate courts consolidate or certify a class.
Litigation Pace	Single injunction could delay enforcement long enough for appeals to drag on.	Faster escalation to appellate courts and SCOTUS is likely, since policies may proceed outside narrow injunction coverage.
Advocacy Strategy	File many overlapping suits, knowing any one could stop the policy nationwide.	Focus on coordinated suits designed for class treatment, with broader representation and stronger standing arguments.
Government Defense	Argued that nationwide injunctions were improper but often had to comply until appeals succeeded.	Gains leverage: can stress CASA precedent to narrow injunctions and keep policies in effect while litigation continues.
Practical Effect	One judge could effectively set national policy by halting an EO or regulation everywhere.	Harder to freeze policy nationwide; must win class relief or appellate rulings to get broad protection. Empowers the Executive Branch

California v. Trump

Regarding the deployment of the CA Nat'l Guard and the US Marines in LA

Overview

In June 2025, mass protests erupted in Los Angeles after federal immigration raids. Peaceful marches outside ICE facilities escalated into days of sit-ins, clashes with police, and rising tensions. President Trump responded by announcing he was taking control of the California National Guard and deploying U.S. Marines.

His memorandum did not invoke the Insurrection Act but instead cited 10 U.S.C. § 12406, which permits Guard call-ups in cases of rebellion or when regular forces cannot enforce federal law. His memorandum stated that he would federalize the Guard and deploy active-duty troops to protests, even preemptively before violence occurred. “We’re going to have troops everywhere.” Trump proclaimed on June 8th.

Governor Newsom objected, arguing California could manage the unrest and that Trump was overreaching. Nevertheless, Guard units and Marines patrolled neighborhoods, set up checkpoints, and supported ICE operations both in LA and a hundred miles outside of the city limits. In at least two cases, Marines detained a civilian. Troops were deployed even without threats to federal property, such as the July 7 patrols in near-empty MacArthur Park.

The move was historically rare: no state Guard had been federalized against a governor’s wishes since the Civil Rights Era, when Eisenhower and Kennedy used the Guard to enforce school desegregation in Little Rock (1957), at Ole Miss (1962), and in Alabama (1963).

The Legal Questions and Positions

California’s lawsuit framed the dispute *in terms of the Insurrection Act* because that’s the only federal statute that would plausibly authorize Trump to take over the California National Guard or deploy federal troops domestically.

Trump did not formally invoke the Insurrection Act but argued he had broad discretion under it, needing no proclamation. He claims that the court cannot review and judicate his decisions on national security.

California argues that the Insurrection Act was never invoked, and that the situation did not meet the threshold for invoking it. Thus Trump had no legal authorization to take control of the CA National Guard.

1. Did Trump have a valid legal basis to take control of the California National Guard in this situation?

- California: Trump had no valid legal basis to federalize the California National Guard. Protests and unrest did not rise to the level of “insurrection”, “domestic violence” or “rebellion” required under the Insurrection Act. Civil unrest was being managed by state and local authorities without the need for federalization.
- Trump Administration: The Insurrection Act and related statutes give the president broad discretion to determine when federalization is necessary. Violence, property destruction, and threats to federal immigration operations justified emergency federal intervention. **The president has exclusive discretion to decide when such thresholds are met.**

2. Did federalizing the Guard without the governor's consent violate California's state sovereignty under the Tenth Amendment?

- California: The threshold for the Insurrection Act was not met, so by taking control of the Guard without the governor's consent, California was stripped of its constitutional right to control its own militia under the 10th Amendment and Article 1 of the Constitution.
- Trump Administration: The Insurrection Act allowed Trump to take control of the Guard. Once that happens, they are part of the U.S. military under presidential command. California state sovereignty yields to federal supremacy.

3. Did using the Guard and Marines for law enforcement violate the Posse Comitatus Act (which prohibits the military from acting as domestic police)?

- California: There was no rebellion, insurrection, or obstruction of federal law that would properly trigger The Insurrection Act, which allows troops to be used in domestic law enforcement roles. However, both the CA National Guard and the Marines were used in this way violating the Act.
- Trump Administration: Federalizing the troops (and using Marines) via the Insurrection Act authorizes conduct that Posse Comitatus would normally prohibit. Posse Comitatus does not apply once the Guard is federalized. Even if it did, troops were engaged in protective/security roles, not direct law enforcement.

4. Can courts review and limit the president's decision to deploy troops?

- California: Courts can and must review presidential actions that exceed statutory authority or violate constitutional limits.
- Trump Administration: The courts have **no role** in reviewing or overturning presidential decisions about domestic troop deployment. Decisions on troop deployment are political questions tied to executive war powers and emergency authority.

5. Did Trump's actions bypass Congress and violate separation of powers?

- California: Trump acted unilaterally, bypassing congressional checks on domestic use of the military. This sets a dangerous precedent for future presidents to override governors at will.
- Trump Administration: The Constitution explicitly grants the president power as Commander in Chief, and Congress has already delegated authority through the Insurrection Act. No separation of powers violation because the president was executing existing law, not creating new powers.

Timeline: *California v. Trump*

- **June 12, 2025 – District Court (N.D. Cal.)**
Judge Breyer granted California's request for a TRO, restoring Guard control to Gov. Newsom and ruling Trump lacked statutory authority and violated the Tenth Amendment.
- **June 13–16, 2025 – DOJ Appeals TRO**
The Trump Administration immediately appealed, arguing the TRO interfered with the President's commander-in-chief powers and caused irreparable harm to national security. Because injunctions against federal executive action are immediately appealable, the case was bumped up to the Ninth Circuit.
- **June 17, 2025 – Ninth Circuit Hearing**
The Ninth Circuit stayed Judge Breyer's TRO and held oral arguments, allowing Trump to keep control of the Guard temporarily.
- **June 20, 2025 – Ninth Circuit Ruling**
A three-judge panel upheld Trump's authority to federalize the Guard, rejecting the TRO. Importantly, the court declared such presidential decisions are **reviewable by courts**, but governors cannot veto them.
- **August 11, 2025 – Bench Trial Begins**
A non-jury trial opened before Judge Breyer, focusing on whether troops unlawfully engaged in law enforcement (detentions, roadblocks) in violation of the Posse Comitatus Act.
- **August 18, 2025 – Current Status**
Trial remains ongoing. California seeks a permanent injunction to block future federalization without the governor's consent.